



INDIAN POLITY



- **RIGHTS AND LIABILITIES OF THE GOVERNMENT**
- **SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES**



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MODULE – 113

RIGHTS AND LIABILITIES OF THE GOVERNMENT

SUITS BY OR AGAINST THE GOVERNMENT



- 1** Article 300 of the Constitution deals with the suits by or against the Government in India.
- 2** It lays down that the Government of India may sue or be sued by the name of the Union of India and government of a state may sue or be sued by the name of that state.
- 3** Thus, **the Union of India and states are legal entities** (juristic personalities) for purposes of suits and proceedings.

RIGHTS AND LIABILITIES OF THE GOVERNMENT

SUITS BY OR AGAINST THE GOVERNMENT

4 Regarding the extent of the governmental liability, the Constitution (Article 300) declares that the Union of India or states **can sue or be sued in relation to their respective affairs.**

5 This provision is subject to any law made by Parliament or a state legislature.

6 But, no such law has been enacted so far.

7 Hence, at present, the position in this respect remains the same as it existed before the Constitution. In the pre-Constitution period (i.e., from the days of the East India Company up to the commencement of the Constitution in 1950), the **government was suable for contracts but not for torts** (wrongs committed by its servants) in respect of its sovereign functions.

RIGHTS AND LIABILITIES OF THE GOVERNMENT

SUITS BY OR AGAINST THE GOVERNMENT

1. LIABILITY FOR CONTRACTS



- 1 Under the exercise of its executive power, the Union or a state can enter into contracts for the acquisition, holding and disposal of property, or to carry on any trade or business, or for any other purpose.

- 2 But, the Constitution lays down three conditions which must be fulfilled by such contracts:
 - a) They must be expressed to be **made by the president or governor**, as the case may be;
 - b) They must be **executed on behalf** of the president or governor, as the case may be; and
 - c) They must be **executed by such person** or in such manner as the president or governor may direct or authorise.

RIGHTS AND LIABILITIES OF THE GOVERNMENT

SUITS BY OR AGAINST THE GOVERNMENT

1. LIABILITY FOR CONTRACTS

- 3 These **conditions are mandatory** and not merely directory in nature. Failure to comply with them nullifies the contracts and renders them void and unenforceable in the courts.
- 4 Further, the president or the governor is not **personally liable** in respect of any contract executed in his name.
- 5 Similarly, the **officer executing** the contract is also **not personally liable**.
- 6 This immunity is purely personal and **does not immunize the government from a contractual liability**, making the government suable in contracts.
- 7 This means that the contractual liability of the Union government and the state governments is the same as that of an individual under the ordinary law of contract, which has been the position in India since the days of the East India Company.

RIGHTS AND LIABILITIES OF THE GOVERNMENT

SUITS BY OR AGAINST THE GOVERNMENT

2. LIABILITY FOR TORTS



1

Maxim of "King Can Do No Wrong":

- The Company was suable for its functions as a trader but not as a sovereign.
- This immunity of the Company in respect of its sovereign functions was based on the English Common Law maxim that the 'King can do no wrong', which means that the King was not liable for wrongs of his servants.
- This traditional immunity of the State in Britain from any legal liability for any action has been done away by the Crown Proceedings Act (1947).
- However, the position in India still remains the same.

RIGHTS AND LIABILITIES OF THE GOVERNMENT

SUITS BY OR AGAINST THE GOVERNMENT

2. LIABILITY FOR TORTS



2

Sovereign Vs Non-Sovereign Functions:

- The government (Union or states) in India can be sued for torts (civil wrongs) committed by its officials **only in the exercise of its non-sovereign functions but not in the sovereign functions** like administering justice, constructing a military road, commandeering goods during war, etc.
- This distinction between the sovereign and non-sovereign functions of the Government in India and the immunity of the government in respect of its sovereign functions was established in the famous **P and O Steam Navigation Company case** (1861).
- This was reaffirmed by the Supreme Court in the post-independence era in the **Kasturilal case** (1965).

RIGHTS AND LIABILITIES OF THE GOVERNMENT

SUITS BY OR AGAINST THE GOVERNMENT

2. LIABILITY FOR TORTS



In the above case, the Supreme Court did not overrule its judgement in the Kasturilal case (1965). However, it said that it is applicable to rare and limited cases.

3

Nagendra Rao Case (1994):

- In this case, Supreme Court ruled that when a citizen suffers any damage due to the negligent act of the servants of the State, the State would be liable to pay compensation for it and the State cannot avoid this liability on the ground of sovereign immunity.
- It held that in the modern sense, the distinction between sovereign and non-sovereign functions does not exist.
- It laid down the proposition that barring a few functions, the State cannot claim any immunity.

RIGHTS AND LIABILITIES OF THE GOVERNMENT

SUITS AGAINST PUBLIC OFFICIALS

1. PRESIDENT AND GOVERNOR

The Constitution confers certain immunities to the president of India and governor of states with regard to their official acts and personal acts. These are:



— PARLIAMENT OF INDIA —

1

Official Acts:

- The president and the governors cannot be sued during the term of their office or thereafter, for any act done by them in the exercise and performance of their official powers and duties.
- However, the official conduct of the president can be reviewed by a court, tribunal or any other body authorised by either House of Parliament to investigate charges for impeachment.

RIGHTS AND LIABILITIES OF THE GOVERNMENT

SUITS AGAINST PUBLIC OFFICIALS

1. PRESIDENT AND GOVERNOR



2

Personal Acts:

- No criminal proceedings can be started against the president and the governors in respect of their personal acts nor can they be arrested or imprisoned.
- This immunity is limited to the period of the term of their office only and does not extend beyond that.
- However, civil proceedings can be started against them during their term of office in respect of their personal acts after giving two months' advance notice.

RIGHTS AND LIABILITIES OF THE GOVERNMENT

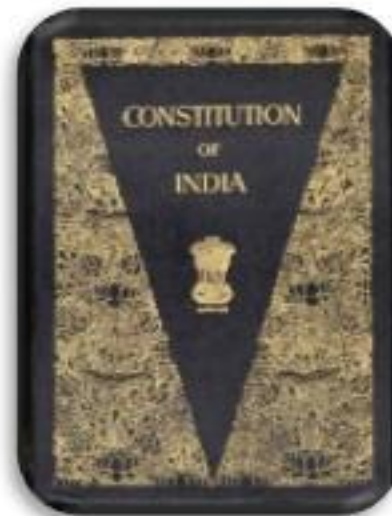
SUITS AGAINST PUBLIC OFFICIALS

2. MINISTERS

- The Constitution **does not grant any immunity to the ministers for their official acts.**
- But, since they are **not required to countersign** (as in Britain) the official acts of the president and the governors, they **are not liable in the courts** for those acts.
- Moreover, they are not liable for the official acts done by the president and the governors on their advice as the courts are debarred from inquiring into such advice.
- However, **the ministers do not enjoy any immunity for their personal acts**, and can be sued for crimes as well as torts in the ordinary courts like common citizens.

3. JUDICIAL OFFICERS

The judicial officers enjoy immunity from any liability in respect of their official acts and hence, cannot be sued.



RIGHTS AND LIABILITIES OF THE GOVERNMENT

SUITS AGAINST PUBLIC OFFICIALS

4. CIVIL SERVANTS

- Under the Constitution, the civil servants are conferred **personal immunity from legal liability for official contracts**.
- This means that the civil servant who made a contract in his official capacity is not personally liable in respect of that contract but it is the government (Central or state) that is liable for the contract.
- Further, the **civil servants also enjoy immunity from legal liability for their tortious acts** in respect of the sovereign functions of the government.

- **Civil proceedings** can be instituted against them for anything done in their official capacity after giving a **two months' advance notice**.
- But, no such notice is required when the action is to be brought against them for the acts done outside the scope of their official duties.
- **Criminal proceedings** can be instituted against them for acts done in their official capacity, with the **prior permission of the president or the governor**, where necessary.

RATIONALE OF SPECIAL PROVISIONS



1 In order to realise the objectives of equality and justice as laid down in the Preamble, the Constitution makes special provisions for the scheduled castes (SCs), the scheduled tribes (STs), the backward classes (BCs) and the Anglo-Indians.

2 These special provisions are contained in **Part XVI** of the Constitution from **Articles 330 to 342**.

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

RATIONALE OF SPECIAL PROVISIONS

These special provisions can be classified into the following broad categories:



3

Permanent and Temporary:

Some of them are a permanent feature of the Constitution, while some others continue to operate only for a specified period.

4

Protective and Developmental:

Some of them aim at protecting these classes from all forms of injustice and exploitation, while some others aim at promoting their socio-economic interests.

SPECIFICATION OF CLASSES

CASE OF SCs AND STs



— PARLIAMENT OF INDIA —

1 The Constitution does not specify the castes or tribes which are to be called the SCs or the STs.

2 It leaves to the President the power to specify as to what castes or tribes in each state and union territory are to be treated as the SCs and STs.

3 Thus, the lists of the SCs or STs vary from state to state and union territory to union territory. In case of the states, the President issues the notification after consulting the governor of the state concerned.

4 But, any inclusion or exclusion of any caste or tribe from Presidential notification can be done only by the Parliament and not by a subsequent Presidential notification.

SPECIFICATION OF CLASSES

CASE OF BCs

- The Constitution has neither specified the BCs nor used a single uniform expression to characterize the BCs.
- The expression 'BCs' means such backward classes of citizens other than the SCs and the STs as may be specified by the Central Government.



CASE OF ANGLO-INDIAN COMMUNITIES

- Unlike in the case of SCs, STs and OBCs, the Constitution has defined the persons who belong to the Anglo-Indian community.
- Accordingly, 'an Anglo-Indian means a person whose father or any of whose other male progenitors in the male line is or was of European descent but who is domiciled within the territory of India and is or was born within such territory of parents habitually resident therein and not established there for temporary purposes only'.

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

COMPONENTS OF SPECIAL PROVISIONS

1. RESERVATION FOR SCS AND STS AND SPECIAL REPRESENTATION FOR ANGLO- INDIANS IN LEGISLATURES



- 1 The President can nominate two members of the Anglo-Indian community to the Lok Sabha, if the community is not adequately represented.
- 2 Similarly, the governor of a state can nominate one member of the Anglo-Indian community to the state legislative assembly, if the community is not adequately represented.

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

COMPONENTS OF SPECIAL PROVISIONS

1. RESERVATION FOR SCS AND STS AND SPECIAL REPRESENTATION FOR ANGLO- INDIANS IN LEGISLATURES

3 Although the Scheduled Castes and the Scheduled Tribes have made considerable progress in the last sixty years, the reasons which weighed with the Constituent Assembly in making provisions with regard to the aforesaid reservation of seats and nomination of members have not ceased to exist.

4 Anglo-Indians constitute a religious, social, as well as a linguistic minority. These provisions were necessary, for, otherwise, being numerically an extremely small community, and being interspersed all over India, the Anglo-Indians could not hope to get any seat in any legislature through election

COMPONENTS OF SPECIAL PROVISIONS

2. CLAIMS OF SCs AND STs TO SERVICES AND POSTS

- The claims of the SCs and STs are to be taken into consideration while making appointments to the public services of the Centre and the states, without sacrificing the efficiency of administration.
- However, the **82nd Amendment Act** of 2000 provides for making of any provision in favour of the SCs and STs for **relaxation in qualifying marks in any examination or lowering the standards of evaluation**, for **reservation in matters of promotion** to the public services of the Centre and the states.

3. SPECIAL PROVISION IN SERVICES AND EDUCATIONAL GRANTS FOR ANGLO- INDIANS

- Before independence, certain posts were reserved for the Anglo- Indians in the railway, customs, postal and telegraph services of the Union.
- Similarly, the Anglo-Indian educational institutions were given certain special grants by the Centre and the states.
- Both the benefits were allowed to continue under the Constitution on a progressive diminution basis and finally came to an end in 1960.

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

COMPONENTS OF SPECIAL PROVISIONS

4. NATIONAL COMMISSIONS FOR SCs AND STs

- The President should set up a National Commission for SCs under Article 338 and National Commission for STs under Article 338 A.
- The National Commission for SCs is also required to discharge similar functions with regard to the Anglo-Indian Community.

5. CONTROL OF THE UNION OVER THE ADMINISTRATION OF SCHEDULED AREAS AND THE WELFARE OF STs

- The President is required to appoint a commission to report on the administration of the scheduled areas and the welfare of the STs in the states.
- He can appoint such a commission at any time but compulsorily after ten years of the commencement of the Constitution.

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

COMPONENTS OF SPECIAL PROVISIONS

6. APPOINTMENT OF A COMMISSION TO INVESTIGATE THE CONDITIONS OF BCs



- The President may appoint a commission to investigate the conditions of socially and educationally backward classes and to recommend the steps to improve their condition.
- Under the above provision, the President has appointed two commissions so far - Kaka Kalelkar Commission and B.P. Mandal.

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